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File No.: EXP202305764

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 17, 2023, a complaint was filed with entry registration number REGAGE23e00024623041 and REGAGE23e00024691733 before the Spanish Agency for Data Protection against PROMOCIONES INMOBILIARIAS URIMO, S.L. with NIF B43786789. The reasons for the complaint are as follows:

The complainant states that the respondent is the developer and owner of the building where the complainant resides and has installed cameras on all floors of the building, without the authorization of the neighbors, using the video surveillance system for personal use and to control neighbors, without the system being properly signposted through adequate informative signs of the monitored area. Images of the location of the cameras and of the installed monitored area signs are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to PROMOCIONES INMOBILIARIAS URIMO, S.L., for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not received by the responsible party. The forwarding was reiterated on June 8, 2023, and June 28, 2023, by certified mail and was returned marked as "absent during delivery" and "incorrect address," respectively, as noted in the acknowledgments of receipt in the file. No response has been received to this forwarding letter.

THIRD: On July 17, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

In order to obtain complete data including the NIF of the COMMUNITY OF OWNERS R.R.R., a request is made to the property and real estate consultation service of the cadastre regarding the ownership of the property, and based on the cadastre report, the owner of the previously mentioned properties was identified:

- PROMOCIONES INMOBILIARIAS URIMO S.L., with NIF B43786789, owner of 100.00% of the property.

A query is made in Axesor and it is verified that A.A.A. is the ***POSITION.1 (...) of this company. On October 26, 2023, within the framework of the present investigative actions, a request is made to PROMOCIONES INMOBILIARIAS URIMO S.L. to provide complete data, including its NIF, of the Community of Owners, and on December 22, 2023, compliance with the request is fulfilled by providing the requested information. The respondent presents communication of the tax identification number (NIF) of the COMMUNITY OF OWNERS R.R.R. from the Tax Agency.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each control authority by Article 57.1 a), f) and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish

Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data. "processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation,

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suppression or destruction;" The images generated by a system of cameras or video cameras are personal data, therefore their processing is subject to data protection regulations.

III

Obligations regarding video surveillance

The processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

- 1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities. It must be assessed whether the intended purpose can be achieved by other means that are less intrusive to the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot be reasonably achieved by other means, considering Recital 39 of the GDPR.
- 2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.
- 3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled. In this regard, Article 22 of the LOPDGDD provides for a "layered information" system concerning video surveillance. The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data. This information must be contained in a device placed in a sufficiently visible location and must be provided in advance. The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.
- 4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.
- 5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.
- 6.- The controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

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7.- The controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4. The conditions for video surveillance in communities of property owners are governed by the Horizontal Property Law (hereinafter, LPH). When installing video surveillance systems in communities of property owners, a series of requirements must be taken into account, and when capturing images in common areas or elements, the adoption of this measure requires the agreement of the owners' meeting in the terms provided in the aforementioned LPH.

It is necessary for the Community of Neighbors to have the favorable vote of 3/5 of all property owners who, in turn, represent 3/5 of the participation quotas as developed in Article 17.1 of the LPH.

In this specific case, the entire building is owned by PROMOCIONES INMOBILIARIAS URIMO, S.L., so no authorization is needed for the installation of the video cameras.

Regarding the duty to inform, it complies with the requirement for the placement of the informative sign.

IV

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Data Protection Agency.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, by the Director of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to PROMOCIONES INMOBILIARIAS URIMO, S.L. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of the LPACAP, and in accordance with the provisions of Articles 112 and

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According to Article 123 of the aforementioned Law, interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection

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